

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

-----X
MALIK WHITE

Plaintiff,

**COMPLAINT
INDEX NO.**

-against-

CITY OF NEW YORK, NEW YORK CITY POLICE OFFICER RASHAWN WILLIAMS, 75TH PCT, TAX# 970941, NEW YORK CITY POLICE OFFICER NEIL NARAYAN, 75TH PCT, TAX# 966239, NEW YORK CITY POLICE OFFICER ANTHONY VARRONE, 75TH PCT, TAX# 961405, NEW YORK CITY POLICE OFFICER "JOHN DOE" #1, NEW YORK CITY POLICE OFFICER "JOHN DOE" #2, NEW YORK CITY POLICE OFFICER "JOHN DOE" #3, NEW YORK CITY POLICE OFFICER "JOHN DOE" #4, NEW YORK CITY POLICE OFFICER "JOHN DOE" #5, NEW YORK CITY POLICE OFFICER "JOHN DOE" #6 AND NEW YORK CITY POLICE OFFICER "JANE DOE" #1

Defendants
-----X

Plaintiff, MALIK WHITE, by his attorney Douglas G. Rankin, P.C. complaining of the Defendants CITY OF NEW YORK, NEW YORK CITY POLICE OFFICER RASHAWN WILLIAMS, NEW YORK CITY POLICE OFFICER NEIL NARAYAN, NEW YORK CITY POLICE OFFICER ANTHONY VARRONE, NEW YORK CITY POLICE OFFICER "JOHN DOE" #1, NEW YORK CITY POLICE OFFICER "JOHN DOE" #2, NEW YORK CITY POLICE OFFICER "JOHN DOE" #3, NEW YORK CITY POLICE OFFICER "JOHN DOE" #4, NEW YORK CITY POLICE OFFICER "JOHN DOE" #5, NEW YORK CITY POLICE OFFICER "JOHN DOE" #6 AND NEW YORK CITY POLICE OFFICER "JANE DOE" #1 alleges upon information and belief, as follows:

PARTIES

1. Plaintiff Malik White is a man of Black ancestry who, at all times relevant herein, has been residing in Brooklyn and Long Island, New York.
2. Defendant City of New York is a municipal entity created and organized under the laws of the State of New York. The City is authorized by law to maintain the NYPD. The City's responsibility extends to all NYPD matters including the NYPD's policies, practices, and the conduct of all NYPD personnel including policymakers and employers.
3. Defendant Rashawn Williams was a police officer assigned to the 75th Precinct at the time of the incident.
4. Defendant Neil Narayan was a police officer assigned to the 75th Precinct at the time of the incident.
5. Defendant Anthony Varrone was a police officer assigned to the 75th Precinct at the time of the incident.
6. Defendant "John Doe" #1 was a member of the NYPD at the time of the incident.
7. Defendant "John Doe" #2 was a member of the NYPD at the time of the incident.
8. Defendant "John Doe" #3 was a member of the NYPD at the time of the incident.
9. Defendant "John Doe" #4 was a member of the NYPD at the time of the incident.
10. Defendant "John Doe" #5 was a member of the NYPD at the time of the incident.
11. Defendant "John Doe" #6 was a member of the NYPD at the time of the incident.
12. Defendant "Jane Doe" #1 was a member of the NYPD at the time of the incident.

COMPLIANCE WITH NEW YORK'S GENERAL MUNICIPAL LAW

13. On or about July 8, 2023, Plaintiff served a Notice of Claim upon the City of New York, which timely preserved plaintiff's claims
14. On October 6, 2023, Plaintiff attended a hearing pursuant to N.Y. General Municipal Law § 50-h. More than thirty days have elapsed since Plaintiff served a Notice of Claim, and the City has not offered adjustment or payment thereof.

STATEMENT OF FACTS

15. In the early morning of April 7, 2023, Plaintiff was driving from work in his black Nissan Maxima on Miller Avenue, in Brooklyn. Plaintiff's intention was to park his vehicle near his mother's house, who had just left for Jamaica, W.I. and had asked Plaintiff to make sure the garbage was out for the next day, in anticipation of pick up the next morning. Plaintiff, while in the process of parking near the house observed an unmarked patrol vehicle pull up alongside his vehicle's gas tank. Three officers in uniform got of the unmarked vehicle and approached Plaintiff's vehicle.
16. When the officers approached Plaintiff's vehicle, he did not see any weapons out, but Plaintiff recalls seeing their hands placed on their guns. The first officer to come to speak to Plaintiff at the driver's side window, was a Caucasian, male officer. P
17. Plaintiff inquired as to why he was being stopped, and the male African American officer on the right hand side of the front passenger side asked Plaintiff to roll down the windows. Plaintiff complied and proceeded to ask why he was being pulled over, the male, African

American officer responded that Plaintiff's taillight was out or something to that affect.

Plaintiff had no problems with his car rear lights despite what the officer stated.

18. One officer asked Plaintiff why he was so nervous, and another officer asked for his license. Plaintiff began to search for his license in the vehicle and realized his new license was in the trunk of the car which had just arrived in the mail from DMV. Plaintiff advised the officers of same and Plaintiff did have a work identification and provided the officers with his address and date of birth upon their request in order his name through the system.
19. One of the officers pulled Plaintiff out of the car and acted as though he was allowing Plaintiff to retrieve his driver's license, but instead the officer asked to search inside Plaintiff's vehicle. Plaintiff obliged as he had nothing to hide. Plaintiff was placed at the rear of his vehicle while an officer searched his vehicle, lifting seats, floor mats, consoles and searching all bags in the vehicle, recovering nothing illegal.
20. The officer searching Plaintiff's vehicle asked Plaintiff for his car keys, while the other officers began to search Plaintiff, taking a sum of money out of his pocket and his car keys. As the officers went inside of Plaintiff's pockets and retrieved his items without his consent, one officer passed the items to another officer.
21. Plaintiff asked the officer to give him back his items and Plaintiff reached out to take back his items, as the officers didn't have consent to search him, at which point the officers began to repeatedly punch Plaintiff about the face, head and body.
22. The officers proceeded to slam Plaintiff to the ground on his face, as one officer grabbed and twisted his ankle. Plaintiff at no time fought back, nor resisted. The savage beating of Plaintiff is caught on police worn bodycam, however parts of the beating was not visible as the officer seemed to have redirected his bodycam at some point of the beating.

23. In an attempt to coverup the assault, an officer is heard stating “stop fucking resisting” and Plaintiff responds “I’m not resisting” as the officers continue to savagely beat Plaintiff. At one point Plaintiff is begging the officers, and screams “stop! I have asthma!” yet the officers continue to beat Plaintiff. The officers at some point stop beating Plaintiff and places him in handcuffs. and picked up him up off the ground. Plaintiff experienced an asthma attack and was eventually given his inhaler.
24. Thereafter, Plaintiff was taken to the 75th Precinct and during transport Plaintiff requested medical assistance and was told by an officer that assistance was on its way. Once inside the 75th Precinct Plaintiff told the officers that his cuffed hands hurt and kept repeating it. The officers didn't want to loosen up the cuffs until Plaintiff told them he worked for the city and that he knew protocol, and that's when the handcuffs were loosened a bit.
25. Upon arrival of EMS, Plaintiff was taken to Brookdale. Plaintiff’s complaints included asthma, pain and bruising and knot to his head, cut lip, and cuts on his hands.
26. During the hospital visit the two officers who accompanied Plaintiff were laughing and one stating in sum and substance that Plaintiff got beat up and punched, and that Plaintiff didn’t know who punched him because it was like an octopus with so many arms. The officer was cracking jokes and one officer proceeded to ask Plaintiff what type of females he was into, Plaintiff did not respond.
27. Upon returning to the precinct Plaintiff was fingerprinted and photographed and remained in the holding cell for over twelve hours. Plaintiff asked why he was arrested and was told he was being charged with OGA (obstructing governmental administration). Plaintiff was eventually taken to central booking where he remained for approximately sixteen hours. Plaintiff observed a large number of bedbugs while being held. During arraignment

Plaintiff was charged with resisting arrest, OGA and possession of a weapon, specifically a gun. Plaintiff was released on \$10,00.00 bail.

28. Plaintiff was forced to hire private counsel and was required to make five court appearances. A grand jury convened and returned a “no true bill”, as the prosecution’s evidence did not persuade the grand jury that that there was probable cause to believe Plaintiff committed a crime. During the final court appearance on or about September 22, 2023 Plaintiff was informed of the “no true bill” which occurred sometime in July of 2023.
29. Plaintiff sought medical attention the same day he was released from jail and thereafter, due to continued pain to the head, face, left arm, both shoulder, ankle, back and wrists.
30. Plaintiff was initially suspended from his place of employment without pay, as result of his arrest. Plaintiff was eventually allowed to return to work but could not perform the duties due to my injuries and was let go.
31. Defendants’ actions on or about April 7, 2023, have caused Plaintiff physical, psychological, and emotional injuries.
32. Plaintiff suffered physical injuries during his time in NYPD’s custody, including an asthma attack, pain and bruising to the head, and face; paint to shoulders, arms, back; and pain from handcuffs that were too tight during his transport.
33. Since the arrest, Plaintiff has suffered psychological and emotional distress. Since the arrest, Plaintiff has not felt safe. Plaintiff has closed herself off from his friends, who have

noticed that he is more downcast and nervous than before the incident. Plaintiff does not spend significant time outside of his home.

34. Plaintiff fears that he will be caught in a similar situation where the police stops his vehicle and that the police will not listen to him if he is ever in a similar situation. Plaintiff feels like he could be assaulted and arrested, even if the police are wrong and even if there are other police officers present, because of all the police officers who witnessed to his assault and arrest did not stop it from happening.
35. Plaintiff struggles to sleep at night, and then he will sleep much of the day. He has had trouble taking care of himself. When he thinks about what happened, Plaintiff gets hot, his palms begin to sweat, and his heart races. He sees white dots in his line of vision, which is a sign to him that his blood pressure is rising. He frequently feels anxious, in a way that he did not before he was assaulted and arrested.
36. He has traumatic associations with his mother's house, and neighborhood after the incident, Plaintiff repeatedly recalls the events of the early morning of April 7, 2023 and because of these negative memories, Plaintiff has avoided his mother's home in Brooklyn, and not going back to it for at least six months after the incident, and rarely spending time there since.
37. Prior to his assault and arrest, Plaintiff was employed by the Defendant City. After his arrest, and as a product of the physical and emotional trauma inflicted by individual Defendants over the course of his assault and arrest, Plaintiff has lost ability to pursue the types of jobs he had previously taken on. As a result of this, Plaintiff has lost income.

IAB and CCRB have an ongoing investigation.

CLAIMS

Count One: False Arrest (Fourth Amendment)**42 U.S.C. § 1983*****Against the Individual Defendants***

38. Plaintiff repeats and realleges paragraphs 1 through 37, as if fully set forth herein.
39. The Individual Defendants were at all relevant times state actors and persons acting under color of state law within the meaning of 42 U.S.C. § 1983 because they are commissioned by the City of New York to exercise police powers.
40. The Individual Defendants acted intentionally, with malice and knowing disregard for Plaintiff's constitutional rights, in falsely detaining, arresting, and imprisoning him against her will. Plaintiff was conscious of, and at no point consented to, the confinement by the Individual Defendants.
41. The actions of the Individual Defendants in falsely detaining, arresting, and imprisoning Plaintiff without warrant, reasonable suspicion or probable cause violated Plaintiff's Fourth Amendment rights to be free from unreasonable search and seizure, pursuant to 42 U.S.C. § 1983.
42. The Individual Defendants' actions were the direct and proximate cause of violations of Plaintiff's constitutional, state, and other legal rights, and of damages including bodily injury, pain, suffering, mental distress, anguish, humiliation, loss of income, and legal expenses as set forth above. Accordingly, Plaintiff is entitled to compensatory and punitive damages.

Count Two: Illegal Search (Fourth Amendment)**42 U.S.C. § 1983*****Against the Individual Defendants***

43. Plaintiff repeats and realleges paragraphs 1 through 42, as if fully set forth herein.
44. The Individual Defendants were at all relevant times state actors and persons acting under color of state law within the meaning of 42 U.S.C. § 1983 because they are commissioned by the City of New York to exercise police powers.
45. Without a warrant, probable cause, or legal justification, the Individual Defendants engaged in an unlawful search of Plaintiff's home, including by entering the bedrooms and looking through personal belongings in closets. At no point did Plaintiff consent to the search.
46. The Individual Defendants acted intentionally, with malice and knowing disregard for Plaintiff's constitutional rights, in conducting an unjustified search of her home.
47. The Individual Defendants' conduct was objectively unreasonable and violated Plaintiff's Fourth Amendment rights under the U.S. Constitution.
48. The Individual Defendants' actions were the direct and proximate cause of violations of Plaintiff's constitutional, state, and other legal rights, and of damages including pain, suffering, mental distress, anguish, humiliation, loss of income, and legal expenses as set forth above. Accordingly, Plaintiff is entitled to compensatory and punitive damages.

Count Three: Fabricated Evidence (Fourteenth Amendment)

42 U.S.C. § 1983

Against the Individual Defendants

49. Plaintiff repeats and realleges paragraphs 1 through 48, as if fully set forth herein.

50. The Individual Defendants were at all relevant times state actors and persons acting under color of state law within the meaning of 42 U.S.C. § 1983 because they are commissioned by the City of New York to exercise police powers.
51. The Individual Defendants, while acting in an investigating capacity, fabricated evidence of a material nature likely to influence a jury's decision, intentionally provided fabricated evidence to prosecutors, and as a result, Plaintiff suffered a number of injuries set forth herein, including deprivation of his liberty.
52. The Individual Defendants' actions were the direct and proximate cause of violations of Plaintiff's constitutional, state, and other legal rights, and of damages including pain, suffering, mental distress, anguish, humiliation, loss of income, and legal expenses as set forth above. Accordingly, Plaintiff is entitled to compensatory and punitive damages.

Count Four: Malicious Prosecution (Fourth Amendment)

42 U.S.C. § 1983

Against the Individual Defendants

53. Plaintiff repeats and realleges paragraphs 1 through 52, as if fully set forth herein.
54. The Individual Defendants were at all relevant times state actors and persons acting under color of state law within the meaning of 42 U.S.C. § 1983 because they are commissioned by the City of New York to exercise police powers.
55. The Individual Defendants pressed charges against Plaintiff, while knowing the charges were baseless and lacked probable cause. The proceedings were subsequently terminated in Plaintiff's favor, in a manner indicative of innocence.

56. Statements made by the Individual Defendants to justify the charges against Plaintiff were made with the knowledge that those statements were false. The Individual Defendants acted intentionally with malice and knowing disregard for Plaintiff's constitutional rights.
57. The Individual Defendants' actions were the direct and proximate cause of violations of Plaintiff's constitutional, state, and other legal rights, including a loss of liberty, and of damages including pain, suffering, mental distress, anguish, humiliation, loss of income, and legal expenses as set forth above. Accordingly, Plaintiff is entitled to compensatory and punitive damages.

Count Five: Excessive Force (Fourth Amendment)

42 U.S.C. § 1983

Against the Individual Defendants

58. Plaintiff repeats and realleges paragraphs 1 through 57, as if fully set forth herein.
59. The Individual Defendants were at all relevant times state actors and persons acting under color of state law within the meaning of 42 U.S.C. § 1983 because they are commissioned by the City of New York to exercise police powers.
60. Individual Defendants deprived Plaintiff of a federally constitutional right under the 4th amendment, which protects Plaintiff from being subjected to the excessive force while being stopped and arrested.
61. Individual Defendants used force against Plaintiff beyond the amount of force necessary under the circumstances to make the arrest.
62. The Individual Defendants acted intentionally with malice and knowing disregard for Plaintiff's constitutional rights.

63. Defendants' actions were the direct and proximate cause of violations of Plaintiff's constitutional, state, and other legal rights, and of damages including loss of liberty, pain, suffering, mental distress, anguish, humiliation, loss of income, and legal expenses as set forth above. Accordingly, Plaintiff is entitled to compensatory and punitive damages

Count Six: Failure to Intervene (Fourth Amendment)

42 U.S.C. § 1983

Against the Individual Defendants

64. Plaintiff repeats and realleges paragraphs 1 through 63, as if fully set forth herein.

65. The Individual Defendants were at all relevant times state actors and persons acting under color of state law within the meaning of Section 1983 because they are commissioned by the City of New York to exercise police powers.

66. During the events set forth in this Complaint and to the extent they did not participate in the use of excessive force and false arrest of Plaintiff, the Individual Defendants stood by during the use of excessive force and false arrest and deprivation of Plaintiff's constitutional and state law rights and did not intervene to prevent those violations despite having the opportunity and duty to do so.

67. The Individual Defendants acted intentionally with malice and knowing disregard for Plaintiff's constitutional rights.

68. Defendants' actions were the direct and proximate cause of violations of Plaintiff's constitutional, state, and other legal rights, and of damages including loss of liberty, pain, suffering, mental distress, anguish, humiliation, loss of income, and legal expenses as set forth above. Accordingly, Plaintiff is entitled to compensatory and punitive damages.

Count Seven: False Arrest Under State Law
Against the City as respondeat superior, and the Individual Defendants

69. Plaintiff repeats and realleges paragraphs 1 through 68, as if fully set forth herein.

70. The Individual Defendants acted intentionally, with malice and knowing disregard for Plaintiff's rights under New York state law, in falsely detaining, arresting, and imprisoning him against his will. Plaintiff was conscious of, and at no point consented to, the confinement by the Individual Defendants.

71. The actions of the Individual Defendants in falsely detaining, arresting, and imprisoning Plaintiff without reasonable suspicion or probable cause violated Plaintiff's rights under New York state law.

72. In committing the acts alleged herein, each of the Individual Defendants were members and agents of the NYPD, acting at all relevant times within the scope of their employment. The Defendant City of New York is accordingly liable as principal for all torts in violation of state law committed by its agents.

73. Defendants' actions were the direct and proximate cause of violations of Plaintiff's constitutional, state, and other legal rights, and of damages including, pain, suffering, mental distress, anguish, humiliation, loss of income, and legal expenses as set forth above. Accordingly, Plaintiff is entitled to compensatory and punitive damages.

Count Eight: Negligent Supervision, Training or Retention Under State Law
Against the City as respondeat superior, and the Individual Defendants

74. Plaintiff repeats and realleges paragraphs 1 through 73, as if fully set forth herein.

75. Defendant City knew or had reason to know that the failure to supervise or train

Individuals defendant officers in a certain way would create a risk of harm to Plaintiff as there have been numerous complaints of abuse of authority by these individual defendants regarding stops, physical force, frisks and searches, many of which were substantiated.

76. That risk of harm materialized and caused Plaintiff's rights to be violated under New York state law, in the use of excessive force, in falsely detaining, arresting, and imprisoning him against his will.

77. Defendants' actions were the direct and proximate cause of violations of Plaintiff's constitutional, state, and other legal rights, and of damages including, pain, suffering, mental distress, anguish, humiliation, loss of income, and legal expenses as set forth above. Accordingly, Plaintiff is entitled to compensatory and punitive damages.

Count Nine: Assault Under State Law
Against the City as respondeat superior, and the Individual Defendants

78. Plaintiff repeats and realleges paragraphs 1 through 77, as if fully set forth herein.

79. Plaintiff contemplated and feared harmful and unwanted touching by the Individual Defendants, who each had the present ability to do so.

80. As a proximate result of the Individual Defendants' acts and/or omissions as alleged throughout this entire complaint, Individual Defendants assaulted Plaintiff.

81. In committing the acts alleged herein, each of the Individual Defendants were members of, and agents of, the NYPD, acting at all relevant times within the scope of their employment. The Defendant City of New York is accordingly liable as principal for all torts in violation of state law committed by its agents.

82. Defendants' actions were the direct and proximate cause of violations of Plaintiff's constitutional, state, and other legal rights, including a loss of liberty, and of damages including pain, suffering, mental distress, anguish, humiliation, loss of income, and legal expenses as set forth above. Accordingly, Plaintiff is entitled to compensatory and punitive damages.

Count Ten: Abuse of Process Under State Law
Against the City as respondeat superior, and the Individual Defendants

83. Plaintiff repeats and realleges paragraphs 1 through 82, as if fully set forth herein.

84. The Individual Defendants, without proper excuse or justification, improperly utilized regularly issued judicial process to retaliate against Plaintiff. In so doing, the Individual Defendants intended to inflict harm on Plaintiff's person and to use process to obtain a collateral objective.

85. In committing the acts alleged herein, each of the Individual Defendants were members and agents of the NYPD, acting at all relevant times within the scope of their employment. The Defendant City of New York is accordingly liable as principal for all torts in violation of state law committed by its agents.

86. Defendants' actions were the direct and proximate cause of violations of Plaintiff's constitutional, state, and other legal rights, and of damages including bodily injury, pain, suffering, mental distress, anguish, humiliation, loss of income, and legal expenses as set forth above. Accordingly, Plaintiff is entitled to compensatory and punitive damages.

Count Eleven: Malicious Prosecution Under State Law
Against the City as respondeat superior, and the Individual Defendants

87. Plaintiff repeats and realleges paragraphs 1 through 86, as if fully set forth herein.
88. The Individual Defendants pressed charges against Plaintiff, while knowing the charges were baseless and lacked probable cause. The proceedings were subsequently terminated in Plaintiff's favor, in a manner indicative of innocence.
89. Statements made by the Individual Defendants to justify the charges against Plaintiff were made with the knowledge that those statements were false. Defendants acted intentionally with malice and knowing disregard for Plaintiff's rights.
90. In committing the acts alleged herein, each of the Individual Defendants were members of, and agents of, the NYPD, acting at all relevant times within the scope of their employment. The Defendant City of New York is accordingly liable as principal for all torts in violation of state law committed by its agents.
91. Defendants' actions were the direct and proximate cause of violations of Plaintiff's constitutional, state, and other legal rights, including a loss of liberty, and of damages including pain, suffering, mental distress, anguish, humiliation, loss of income, and legal expenses as set forth above. Accordingly, Plaintiff is entitled to compensatory and punitive damages.

Count Twelve: Intentional Infliction of Emotional Distress Under State Law
Against the City as respondeat superior, and the Individual Defendants

92. Plaintiff repeats and realleges paragraphs 1 through 91, as if fully set forth herein.
93. As a proximate result of Individual Defendants' deliberately indifferent, shocking and oppressive acts and omissions as alleged throughout this entire complaint, Individual Defendants' caused Plaintiff to suffer severe emotional distress, thereby harming Plaintiff.

94. In committing the acts alleged herein, each of the Individual Defendants were members of, and agents of, the NYPD, acting at all relevant times within the scope of their employment. The Defendant City of New York is accordingly liable as principal for all torts in violation of state law committed by its agents.
95. Defendants' actions were the direct and proximate cause of violations of Plaintiff's constitutional, state, and other legal rights, including a loss of liberty, and of damages including pain, suffering, mental distress, anguish, humiliation, loss of income, and legal expenses as set forth above. Accordingly, Plaintiff is entitled to compensatory and punitive damages.

Count Thirteen: Violation of Right to Be Free of Illegal Search and Seizure (New York City)
N.Y.C. Administrative Code § 8-802
Against the City as respondeat superior, and the Individual Defendants

96. Plaintiff repeats and realleges paragraphs 1 through 95, as if fully set forth herein.
97. In committing the acts alleged herein, each of the Individual Defendants were employees of the NYPD, acting at all relevant times within the scope of their employment.
98. Without a warrant, probable cause, or legal justification, the Individual Defendants engaged in an unlawful search of Plaintiff's vehicle and person, including by entering the vehicle and going through bags, underneath seat, glove compartment, console and floor mats. At no point did Defendants have probable cause to search Plaintiff's vehicle or person.

99. To the extent the Individual Defendants were not directly involved in the unlawful search of Plaintiff's vehicle and person, the Individual Defendants failed to intervene in the unlawful search.

100. The Individual Defendants' conduct violated Plaintiff's rights under New York City law.

101. Individual Defendants' actions were the direct and proximate cause of violations of Plaintiff's constitutional, state, and other legal rights, including a loss of liberty, and of damages including pain, suffering, mental distress, anguish, humiliation, loss of income, and legal expenses as set forth above. Accordingly, Plaintiff is entitled to relief.

Count Fourteen: Violation of Right to Be Free from False Arrest (New York City)

N.Y.C. Administrative Code § 8-802

Against the City as respondeat superior, and the Individual Defendants

102. Plaintiff repeats and realleges paragraphs 1 through 101, as if fully set forth herein.

103. In committing the acts alleged herein, each of the Individual Defendants were employees of the NYPD, acting at all relevant times within the scope of their employment. Without a warrant, probable cause, or legal justification, the Individual Defendants falsely detained, arrested, and imprisoned Plaintiff against his will. Plaintiff was conscious of, and at no point consented to, the confinement by the Individual Defendants.

104. To the extent the Individual Defendants were not directly involved in the false arrest of Plaintiff, the Individual Defendants failed to intervene in the arrest.

105. The Individual Defendants' conduct violated Plaintiff's rights under New York City law.

106. Defendants' actions were the direct and proximate cause of violations of Plaintiff's constitutional, state, and other legal rights, including a loss of liberty, and of damages including pain, suffering, mental distress, anguish, humiliation, loss of income, and legal expenses as set forth above. Accordingly, Plaintiff is entitled to relief.

PRAYER FOR RELIEF

WHEREFORE, Plaintiff hereby requests that the Court

- I Award Plaintiff compensatory damages in the amount of \$5,000,000.00 (FIVE MILLION DOLLARS);
- II. Award Plaintiff punitive damages arising from Defendants' actions;
- III. Order reasonable attorneys' fees and costs to be paid by Defendants pursuant to 28 U.S.C. §2414 and 42 U.S.C. § 1988; and
- IV. Grant such other and further relief as the Court deems just and equitable.

Dated: April
2,2024

New York, New York

Respectfully submitted,

/s/

Douglas G. Rankin, P.C.
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DEFENDANT NEW YORK CITY POLICE OFFICER RASHAWN WILLIAMS

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DEFENDANT NEW CITY POLICE OFFICER NEIL NARAYAN

75th Police Precinct
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Brooklyn, New York
DEFENDANT NEW YORK CITY POLICE OFFICER ANTHONY VARRONE

ADDRESS UNKNOWN
DEFENDANT NEW YORK CITY POLICE OFFICER "JOHN
DOE" #1

ADDRESS UNKNOWN
DEFENDANT NEW YORK CITY POLICE OFFICER "JOHN DOE" #2

ADDRESS UNKNOWN
DEFENDANT NEW YORK CITY POLICE OFFICER "JOHN DOE" #3

ADDRESS UNKNOWN
DEFENDANT NEW YORK CITY POLICE OFFICER "JOHN DOE" #4

ADDRESS UNKNOWN
DEFENDANT NEW YORK CITY POLICE OFFICER "JOHN DOE" #5

ADDRESS UNKNOWN
DEFENDANT NEW YORK CITY POLICE OFFICER "JOHN DOE" #6

ADDRESS UNKNOWN
DEFENDANT NEW YORK CITY POLICE OFFICER "JANE DOE" #1

